

Appendix I
Emergency Rules Related to COVID-19

Emergency rule 1. Unlawful detainers

(a) Application

Notwithstanding any other law, including Code of Civil Procedure sections 1166, 1167, 1169, and 1170.5, this rule applies to all actions for unlawful detainer.

(b) Issuance of summons

A court may not issue a summons on a complaint for unlawful detainer unless the court finds, in its discretion and on the record, that the action is necessary to protect public health and safety.

(c) Entry of default

A court may not enter a default or a default judgment for restitution in an unlawful detainer action for failure of defendant to appear unless the court finds both of the following:

- (1) The action is necessary to protect public health and safety; and
- (2) The defendant has not appeared in the action within the time provided by law, including by any applicable executive order.

(d) Time for trial

If a defendant has appeared in the action, the court may not set a trial date earlier than 60 days after a request for trial is made unless the court finds that an earlier trial date is necessary to protect public health and safety. Any trial set in an unlawful detainer proceeding as of April 6, 2020 must be continued at least 60 days from the initial date of trial.

(e) Sunset of rule

This rule will remain in effect through September 1, 2020, or until amended or repealed by the Judicial Council. Notwithstanding Code of Civil Procedure section 1170.5 and this subdivision, any trial date set under (d) as of September 1, 2020, will remain as set unless a court otherwise orders.

1 *(Subd (e) amended effective August 13, 2020.)*

2
3 *Emergency Rule 1 amended effective August 13, 2020.*

4
5
6 **Emergency rule 2. Judicial foreclosures—suspension of actions**

7
8 Notwithstanding any other law, this rule applies to any action for foreclosure on a
9 mortgage or deed of trust brought under chapter 1, title 10, of part 2 of the Code of Civil
10 Procedure, beginning at section 725a, including any action for a deficiency judgment, and
11 provides that, through September 1, 2020, or until this rule is amended or repealed by the
12 Judicial Council:

- 13
14 (1) All such actions are stayed, and the court may take no action and issue no
15 decisions or judgments unless the court finds that action is required to further the
16 public health and safety.
17
18 (2) The period for electing or exercising any rights under that chapter, including
19 exercising any right of redemption from a foreclosure sale or petitioning the court
20 in relation to such a right, is extended.

21
22 *Emergency Rule 2 amended effective August 13, 2020.*

23
24 **Advisory Committee Comment**

25
26 The provision for tolling any applicable statute of limitations, in prior subdivision (2), has been
27 removed as unnecessary because the tolling provisions in emergency rule 9 apply to actions
28 subject to this rule.

29
30
31 **Emergency rule 3. Use of technology for remote appearances**

32
33 **(a) Remote appearances**

34
35 Notwithstanding any other law, in order to protect the health and safety of the
36 public, including court users, both in custody and out of custody defendants,
37 witnesses, court personnel, judicial officers, and others, courts must conduct
38 criminal proceedings and court operations as follows:

- 39
40 (1) Courts may require that criminal proceedings and court operations be
41 conducted remotely.
42

1 (2) In criminal proceedings, courts must receive the consent of the defendant to
2 conduct the proceeding remotely and otherwise comply with emergency rule
3 5. Notwithstanding Penal Code sections 865 and 977 or any other law, the
4 court may conduct any criminal proceeding remotely. As used in this rule,
5 “consent of the defendant” means that the consent of the defendant is
6 required only for the waiver of the defendant’s appearance as provided in
7 emergency rule 5. For good cause shown, the court may require any witness
8 to personally appear in a particular proceeding.
9

10 (3) Conducting criminal proceedings remotely includes, but is not limited to, the
11 use of video, audio, and telephonic means for remote appearances; the
12 electronic exchange and authentication of documentary evidence; e-filing and
13 e-service; the use of remote interpreting; and the use of remote reporting and
14 electronic recording to make the official record of an action or proceeding.
15

16 *(Subd (a) amended effective January 1, 2022.)*
17

18 **(b) Sunset of rule**
19

20 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
21 the Judicial Council.
22

23 *(Subd (b) amended effective March 11, 2022.)*
24

25 *Emergency Rule 3 amended effective March 11, 2022; adopted April 6, 2020; previously*
26 *amended effective January 1, 2022.*
27

28 **Emergency rule 4. Emergency Bail Schedule [Repealed]**

29 *Emergency rule 4 repealed effective June 20, 2020.*
30
31

32 **Emergency rule 5. Personal appearance waivers of defendants during health**
33 **emergency**
34

35 **(a) Application**
36

37 Notwithstanding any other law, including Penal Code sections 865 and 977, this
38 rule applies to all criminal proceedings except cases alleging murder with special
39 circumstances and cases in which the defendant is currently incarcerated in state
40 prison, as governed by Penal Code section 977.2.
41

42 **(b) Types of personal appearance waivers**
43

- (1) With the consent of the defendant, the court must allow a defendant to waive his or her personal appearance and to appear remotely, either through video or telephonic appearance, when the technology is available.
- (2) With the consent of the defendant, the court must allow a defendant to waive his or her appearance and permit counsel to appear on his or her behalf. The court must accept a defendant's waiver of appearance or personal appearance when:
 - (A) Counsel for the defendant makes an on the record oral representation that counsel has fully discussed the waiver and its implications with the defendant and the defendant has authorized counsel to proceed as counsel represents to the court;
 - (B) Electronic communication from the defendant as confirmed by defendant's counsel; or
 - (C) Any other means that ensures the validity of the defendant's waiver.

(c) Consent by the defendant

- (1) For purposes of arraignment and entry of a not guilty plea, consent means a knowing, intelligent, and voluntary waiver of the right to appear personally in court. Counsel for the defendant must state on the record at each applicable hearing that counsel is proceeding with the defendant's consent.
- (2) For purposes of waiving time for a preliminary hearing, consent also means a knowing, intelligent, and voluntary waiver of the right to hold a preliminary hearing within required time limits specified either in Penal Code section 859b or under emergency orders issued by the Chief Justice and Chair of the Judicial Council.
- (3) The court must accept defense counsel's representation that the defendant understands and agrees with waiving any right to appear unless the court has specific concerns in a particular matter about the validity of the waiver.

(d) Appearance through counsel

- (1) When counsel appears on behalf of a defendant, courts must allow counsel to do any of the following:
 - (A) Waive reading and advisement of rights for arraignment.

1 (B) Enter a plea of not guilty.

2
3 (C) Waive time for the preliminary hearing.

- 4
5 (2) For appearances by counsel, including where the defendant is either
6 appearing remotely or has waived his or her appearance and or counsel is
7 appearing by remote access, counsel must confirm to the court at each
8 hearing that the appearance by counsel is made with the consent of the
9 defendant.

10
11 **(e) Conduct of remote hearings**

- 12
13 (1) With the defendant's consent, a defendant may appear remotely for any
14 pretrial criminal proceeding.
15
16 (2) Where a defendant appears remotely, counsel may not be required to be
17 personally present with the defendant for any portion of the criminal
18 proceeding provided that the audio and/or video conferencing system or other
19 technology allows for private communication between the defendant and his
20 or her counsel. Any private communication is confidential and privileged
21 under Evidence Code section 952.

22
23 **(f) Sunset of rule**

24
25 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
26 the Judicial Council.

27
28 *(Subd (f) amended effective March 11, 2022.)*

29
30 *Emergency Rule 5 amended effective March 11, 2022; adopted effective April 6, 2020.*

31
32
33 **Emergency rule 6. Emergency orders: juvenile dependency proceedings**

34
35 **(a) Application**

36
37 This rule applies to all juvenile dependency proceedings filed or pending until the
38 state of emergency related to the COVID-19 pandemic is lifted.

39
40 **(b) Essential hearings and orders**

41
42 The following matters should be prioritized in accordance with existing statutory
43 time requirements.

- (1) Protective custody warrants filed under Welfare and Institutions Code section 340.
- (2) Detention hearings under Welfare and Institutions Code section 319. The court is required to determine if it is contrary to the child's welfare to remain with the parent, whether reasonable efforts were made to prevent removal, and whether to vest the placing agency with temporary placement and care.
- (3) Psychotropic medication applications.
- (4) Emergency medical requests.
- (5) A petition for reentry of a nonminor dependent.
- (6) Welfare and Institutions Code section 388 petitions that require an immediate response based on the health and safety of the child, which should be reviewed for a prima facie showing of change of circumstances sufficient to grant the petition or to set a hearing. The court may extend the final ruling on the petition beyond 30 days.

(c) Foster care hearings and continuances during the state of emergency

- (1) A court may hold any proceeding under this rule via remote technology consistent with Code of Civil Procedure section 367.75 and rule 3.672.
- (2) At the beginning of any hearing at which one or more participants appears remotely, the court must admonish all the participants that the proceeding is confidential and of the possible sanctions for violating confidentiality.
- (3) The child welfare agency is responsible for notice of remote hearings unless other arrangements have been made with counsel for parents and children. Notice is required for all parties and may include notice by telephone or other electronic means. The notice must also include instructions on how to participate in the court hearing remotely.
- (4) Court reports
 - (A) Attorneys for parents and children must accept service of the court report electronically.
 - (B) The child welfare agency must ensure that the parent and the child receive a copy of the court report on time.

1
2 (C) If a parent or child cannot receive the report electronically, the child
3 welfare agency must deliver a hard copy of the report to the parent and
4 the child on time.
5

6 (5) Nothing in this subdivision prohibits the court from making statutorily
7 required findings and orders, by minute order only and without a court
8 reporter, by accepting written stipulations from counsel when appearances
9 are waived if the stipulations are confirmed on the applicable Judicial
10 Council forms or equivalent local court forms.
11

12 (6) If a court hearing cannot occur either in the courthouse or remotely, the
13 hearing may be continued up to 60 days, except as otherwise specified.
14

15 (A) A dispositional hearing under Welfare and Institutions Code section
16 360 should not be continued more than 6 months after the detention
17 hearing without review of the child's circumstances. In determining
18 exceptional circumstances that justify holding the dispositional hearing
19 more than 6 months after the child was taken into protective custody,
20 the impact of the state of emergency related to the COVID-19
21 pandemic must be considered.
22

23 i. If the dispositional hearing is continued more than 6 months after
24 the start date of protective custody, a review of the child must be
25 held at the 6-month date. At the review, the court must determine
26 the continued necessity for and appropriateness of the placement;
27 the extent of compliance with the case plan or available services
28 that have been offered; the extent of progress which has been
29 made toward alleviating or mitigating the causes necessitating
30 placement; and the projected likely date by which the child may
31 return home or placed permanently.
32

33 ii. The court may continue the matter for a full hearing on all
34 dispositional findings and orders.
35

36 (B) A judicial determination of reasonable efforts must be made within 12
37 months of the date a child enters foster care to maintain a child's
38 federal title IV-E availability. If a permanency hearing is continued
39 beyond the 12-month date, the court must review the case to determine
40 if the agency has made reasonable efforts to return the child home or
41 arrange for the child to be placed permanently. This finding can be
42 made without prejudice and may be reconsidered at a full hearing.
43

1 (7) During the state of emergency related to the COVID-19 pandemic, previously
2 authorized visitation must continue, but the child welfare agency is to
3 determine the manner of visitation to ensure that the needs of the family are
4 met. If the child welfare agency changes the manner of visitation for a child
5 and a parent or legal guardian in reunification, or for the child and a
6 sibling(s), or a hearing is pending under Welfare and Institutions Code
7 section 366.26, the child welfare agency must notify the attorneys for the
8 children and parents within 5 court days of the change. All changes in
9 manner of visitation during this time period must be made on a case by case
10 basis, balance the public health directives and best interest of the child, and
11 take into consideration whether in-person visitation may continue to be held
12 safely. Family time is important for child and parent well-being, as well as
13 for efforts toward reunification. Family time is especially important during
14 times of crisis. Visitation may only be suspended if a detriment finding is
15 made in a particular case based on the facts unique to that case. A detriment
16 finding must not be based solely on the existence of the impact of the state of
17 emergency related to the COVID-19 pandemic or related public health
18 directives.

19
20 (A) The attorney for the child or parent may ask the juvenile court to
21 review the change in manner of visitation. The child or parent has the
22 burden of showing that the change is not in the best interest of the child
23 or is not based on current public health directives.

24
25 (B) A request for the court to review the change in visitation during this
26 time period must be made within 14 court days of the change. In
27 reviewing the change in visitation, the court should take into
28 consideration the factors in (c)(7).

29
30 *(Subd (c) amended effective January 21, 2022.)*

31
32 **(d) Sunset of rule**

33
34 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
35 the Judicial Council.

36
37 *(Subd (c) amended effective March 11, 2022.)*

38
39 *Emergency Rule 6 amended effective March 11, 2022; adopted April 6, 2020; previously*
40 *amended effective January 21, 2022.*

41
42 **Advisory Committee Comment**
43

1 When courts are unable to hold regular proceedings because of an emergency that has resulted in
2 an order as authorized under Government Code section 68115, federal timelines do not stop.
3 Circumstances may arise where reunification services to the parent, including visitation, may not
4 occur or be provided. The court must consider the circumstances of the emergency when deciding
5 whether to extend or terminate reunification services and whether services were reasonable given
6 the state of the emergency. (Citations: 42 U.S.C. § 672(a)(1)–(2), (5); 45 CFR § 1355.20; 45 CFR
7 § 1356.21 (b) – (d); 45 C.F.R. § 1356.71(d)(1)(iii); Child Welfare Policy Manual, 8.3A.9 Title
8 IV-E, Foster Care Maintenance Payments Program, Reasonable efforts, Question 2
9 (www.acf.hhs.gov/cwpm/public_html/programs/cb/laws_policies/laws/cwpm/policy_dsp.jsp?citID=92)); Letter dated March 27, 2020, from Jerry Milner, Associate Commissioner, Children’s
10 Bureau, Administration for Children and Families, U.S. Department of Health and Human
11 Services.)
12
13
14

15 **Emergency rule 7. Emergency orders: juvenile delinquency proceedings**

17 **(a) Application**

19 This rule applies to all proceedings in which a petition has been filed under Welfare
20 and Institutions Code section 602 in which a hearing would be statutorily required
21 during the state of emergency related to the COVID-19 pandemic.
22

23 **(b) Juvenile delinquency hearings and orders during the state of emergency**

- 25 (1) A hearing on a petition for a child who is in custody under Welfare and
26 Institutions Code section 632 or 636 must be held within the statutory
27 timeframes as modified by an order of the court authorized by Government
28 Code section 68115. The court must determine if it is contrary to the welfare
29 of the child to remain in the home, whether reasonable services to prevent
30 removal occurred, and whether to place temporary placement with the
31 probation agency if the court will be keeping the child detained and out of the
32 home.
33
- 34 (2) If a child is detained in custody and an in-person appearance is not feasible
35 due to the state of emergency, courts must make reasonable efforts to hold
36 any statutorily required hearing for that case via remote appearance within
37 the required statutory time frame and as modified by an order of the court
38 authorized under Government Code section 68115 for that proceeding. If a
39 remote proceeding is not a feasible option for such a case during the state of
40 emergency, the court may continue the case as provided in (d) for the
41 minimum period of time necessary to hold the proceedings.
42

1 (3) Without regard to the custodial status of the child, the following hearings
2 should be prioritized during the state of emergency related to the COVID-19
3 pandemic:

4
5 (A) Psychotropic medication applications.

6
7 (B) All emergency medical requests.

8
9 (C) A petition for reentry of a nonminor dependent.

10
11 (D) A hearing on any request for a warrant for a child.

12
13 (E) A probable cause determination for a child who has been detained but
14 has not had a detention hearing within the statutory time limits.

15
16 (4) Notwithstanding any other law, and except as described in (5), during the
17 state of emergency related to the COVID-19 pandemic, the court may
18 continue for good cause any hearing for a child not detained in custody who
19 is subject to its juvenile delinquency jurisdiction until a date after the state of
20 emergency has been lifted considering the priority for continued hearings in
21 (d).

22
23 (5) For children placed in foster care under probation supervision, a judicial
24 determination of reasonable efforts must be made within 12 months of the
25 date the child enters foster care to maintain a child's federal title IV-E
26 availability. If a permanency hearing is continued beyond the 12-month date,
27 the court must nevertheless hold a review to determine if the agency has
28 made reasonable efforts to return the child home or place the child
29 permanently. This finding can be made without prejudice and may be
30 reconsidered at a full hearing.

31
32 **(c) Proceedings with remote appearances during the state of emergency.**

33
34 (1) A court may hold any proceeding under this rule via remote technology
35 consistent with Code of Civil Procedure section 367.75 and rule 3.672.

36
37 (2) At the beginning of any hearing conducted with one or more participants
38 appearing remotely, the court must admonish all the participants that the
39 proceeding is confidential and of the possible sanctions for violating
40 confidentiality.

41
42 (3) The court is responsible for giving notice of remote hearings, except for
43 notice to a victim, which is the responsibility of the prosecuting attorney or

1 the probation department. Notice is required for all parties and may include
2 notice by telephone or other electronic means. The notice must also include
3 instructions on how to participate in the hearing remotely.
4

- 5 (4) During the state of emergency, the court has broad discretion to take evidence
6 in the manner most compatible with the remote hearing process, including
7 but not limited to taking testimony by written declaration. If counsel for a
8 child or the prosecuting attorney objects to the court's evidentiary
9 procedures, that is a basis for issuing a continuance under (d).
10

11 *(Subd (c) amended effective January 21, 2022.)*
12

13 **(d) Continuances of hearings during the state of emergency.**
14

15 Notwithstanding any other law, the court may for good cause continue any hearing
16 other than a detention hearing for a child who is detained in custody. In making this
17 determination, the court must consider the custody status of the child, whether there
18 are evidentiary issues that are contested, and, if so, the ability for those issues to be
19 fairly contested via a remote proceeding.
20

21 **(e) Extension of time limits under Welfare and Institutions Code section 709**
22

23 In any case in which a child has been found incompetent under Welfare and
24 Institutions Code section 709 and that child is eligible for remediation services or
25 has been found to require secure detention, any time limits imposed by section 709
26 for provision of services or for secure detention are tolled for the period of the state
27 of emergency if the court finds that remediation services could not be provided
28 because of the state of emergency.
29

30 **(f) Sunset of rule**
31

32 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
33 the Judicial Council.
34

35 *(Subd (f) amended effective March 11, 2022.)*
36

37 *Emergency Rule 7 amended effective March 11, 2022; adopted April 6, 2020; previously*
38 *amended effective January 21, 2022.*
39

40 **Advisory Committee Comment**
41

42 This emergency rule is being adopted in part to ensure that detention hearings for
43 juveniles in delinquency court must be held in a timely manner to ensure that no child is

1 detained who does not need to be detained to protect the child or the community. The
2 statutory scheme for juveniles who come under the jurisdiction of the delinquency court
3 is focused on the rehabilitation of the child and thus makes detention of a child the
4 exceptional practice, rather than the rule. Juvenile courts are able to use their broad
5 discretion under current law to release detained juveniles to protect the health of those
6 juveniles and the health and safety of the others in detention during the current state of
7 emergency related to the COVID-19 pandemic.
8
9

10 **Emergency rule 8. Emergency orders: temporary restraining or protective orders**

11 12 **(a) Application**

13
14 Notwithstanding any other law, this rule applies to any emergency protective order,
15 temporary restraining order, or criminal protective order that was requested, issued,
16 or set to expire during the state of emergency related to the COVID-19 pandemic.
17 This includes requests and orders issued under Family Code sections 6250 or 6300,
18 Code of Civil Procedure sections 527.6 , 527.8, or 527.85, Penal Code sections
19 136.2, 18125 or 18150, or Welfare and Institutions Code sections 213.5, 304,
20 362.4, or 15657.03, and including any of the foregoing orders issued in connection
21 with an order for modification of a custody or visitation order issued pursuant to a
22 dissolution, legal separation, nullity, or parentage proceeding under Family Code
23 section 6221.
24

25 **(b) Duration of orders**

- 26
27 (1) Any emergency protective order made under Family Code section 6250 that
28 is issued during the state of emergency must remain in effect for up to 30
29 days from the date of issuance.
30
31 (2) Any temporary restraining order or gun violence emergency protective order
32 issued or set to expire during the state of emergency related to the COVID-19
33 pandemic must remain in effect for a period of time that the court determines
34 is sufficient to allow for a hearing on the long-term order to occur, for up to
35 90 days.
36
37 (3) Any criminal protective order, subject to this rule, set to expire during the
38 state of emergency, must be automatically extended for a period of 90 days,
39 or until the matter can be heard, whichever occurs first.
40
41 (4) Upon the filing of a request to renew a restraining order after hearing that is
42 set to expire during the state of emergency related to the COVID-19
43 pandemic, the current restraining order after hearing must remain in effect

1 until a hearing on the renewal can occur, for up to 90 days from the date of
2 expiration.

3
4 *(Subd (b) amended effective April 20, 2020.)*
5

6 **(c) Ex parte requests and requests to renew restraining orders**
7

8 (1) Courts must provide a means for the filing of ex parte requests for temporary
9 restraining orders and requests to renew restraining orders. Courts may do so
10 by providing a physical location, drop box, or, if feasible, through electronic
11 means.

12
13 (2) Any ex parte request and request to renew restraining orders may be filed
14 using an electronic signature by a party or a party's attorney.
15

16 *(Subd (c) amended effective April 20, 2020.)*
17

18 **(d) Service of Orders**
19

20 If a respondent appears at a hearing by video, audio, or telephonically, and the
21 court grants an order, in whole or in part, no further service is required upon the
22 respondent for enforcement of the order, provided that the court follows the
23 requirements of Family Code section 6384.
24

25 **(e) Entry of orders into California Law Enforcement Telecommunications System**
26

27 Any orders issued by a court modifying the duration or expiration date of orders
28 subject to this rule, must be transmitted to the Department of Justice through the
29 California Law Enforcement Telecommunications System (CLETS), as provided in
30 Family Code section 6380, without regard to whether they are issued on Judicial
31 Council forms, or in another format during the state of emergency.
32

33 **(f) Sunset of rule**
34

35 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
36 the Judicial Council.
37

38 *(Subd (f) adopted effective March 11, 2022.)*
39

40 *Emergency Rule 8 amended effective March 11, 2022; adopted effective April 6, 2020; previously*
41 *amended effective April 20, 2020.*
42
43

1 **Emergency rule 9. Tolling statutes of limitations for civil causes of action**

2
3 **(a) Tolling statutes of limitations over 180 days**

4
5 Notwithstanding any other law, the statutes of limitations and repose for civil
6 causes of action that exceed 180 days are tolled from April 6, 2020, until October
7 1, 2020.

8
9 *(Subd (a) amended effective May 29, 2020.)*

10
11 **(b) Tolling statutes of limitations of 180 days or less**

12
13 Notwithstanding any other law, the statutes of limitations and repose for civil
14 causes of action that are 180 days or less are tolled from April 6, 2020, until August
15 3, 2020.

16
17 *(Subd (b) amended effective May 29, 2020.)*

18
19 **(c) Sunset of rule**

20
21 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
22 the Judicial Council. This sunset does not nullify the effect of the tolling of the
23 statutes of limitation and repose under the rule.

24
25 *(Subd (c) adopted effective March 11, 2022.)*

26
27 *Emergency Rule 9 amended effective March 11, 2022; adopted effective April 6, 2020; previously*
28 *amended effective May 29, 2020.*

29
30 **Advisory Committee Comment**

31
32 Emergency rule 9 is intended to apply broadly to toll any statute of limitations on the filing of a
33 pleading in court asserting a civil cause of action. The term “civil causes of action” includes
34 special proceedings. (See Code Civ. Proc., §§ 312, 363 [“action,” as used in title 2 of the code (Of
35 the Time of Commencing Civil Actions), is construed “as including a special proceeding of a
36 civil nature”]; special proceedings of a civil nature include all proceedings in title 3 of the code,
37 including mandamus actions under §§ 1085, 1088.5, and 1094.5—all the types of petitions for
38 writ made for California Environmental Quality Act (CEQA) and land use challenges]; see also
39 Pub. Resources Code, § 21167(a)–(e) [setting limitations periods for civil “action[s]” under
40 CEQA].)

1 The rule also applies to statutes of limitations on filing of causes of action in court found in codes
2 other than the Code of Civil Procedure, including the limitations on causes of action found in, for
3 example, the Family Code and Probate Code.
4

5 **Subdivision (c).** The sunset of the rule does not nullify the effect of the tolling of the statutes of
6 limitation and repose established by the rule. Depending on the specific facts of the case and the
7 applicable statute of limitation or repose, the effect of the tolling may survive beyond the sunset
8 date of the rule. For example, if the right to file a cause of action subject to the four-year statute
9 of limitation in Code of Civil Procedure section 337 first accrued on February 15, 2020, the
10 statute of limitation, having been tolled from April 6, 2020, until October 1, 2020, under
11 subdivision (a), would expire in August 2024 rather than February 2024.
12
13

14 **Emergency rule 10. Extensions of time in which to bring a civil action to trial**

15

16 **(a) Extension of five years in which to bring a civil action to trial**

17

18 Notwithstanding any other law, including Code of Civil Procedure section 583.310,
19 for all civil actions filed on or before April 6, 2020, the time in which to bring the
20 action to trial is extended by six months for a total time of five years and six
21 months.
22

23 **(b) Extension of three years in which to bring a new trial**

24

25 Notwithstanding any other law, including Code of Civil Procedure section 583.320,
26 for all civil actions filed on or before April 6, 2020, if a new trial is granted in the
27 action, the three years provided in section 583.320 in which the action must again
28 be brought to trial is extended by six months for a total time of three years and six
29 months. Nothing in this subdivision requires that an action must again be brought
30 to trial before expiration of the time prescribed in (a).
31

32 **(c) Sunset of rule**

33

34 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
35 the Judicial Council. This sunset does not nullify the effect of the extension of time
36 in which to bring a civil action to trial under the rule.
37

38 *(Subd (c) adopted effective March 11, 2022.)*
39

40 *Rule 10 amended effective March 11, 2022; adopted effective April 6, 2020.*
41

42 **Advisory Committee Comment**

43

1 The sunset of the rule does not nullify the effect of the six-month extension established by the
2 rule for all civil actions filed on or before April 6, 2020. Depending on the specific facts of the
3 case, the effect of the extension may survive beyond the sunset date of the rule. For example, if a
4 civil action subject to Code of Civil Procedure section 583.310 was filed on February 15, 2020,
5 the time in which to bring the action to trial would fall in August 2025, having been extended by
6 six months for a total time of five years and six months, rather than February 2025.

7
8
9 **Emergency rule 11. Depositions through remote electronic means**

10 *Emergency rule 11 repealed effective November 13, 2020.*
11

12
13 **Emergency rule 12. Electronic service**

14 *Emergency rule 12 repealed effective November 13, 2020.*
15

16
17 **Emergency rule 13. Effective date for requests to modify support**
18

19 **(a) Application**
20

21 Notwithstanding any other law, including Family Code sections 3591, 3603, 3653,
22 and 4333, this rule applies to all requests to modify or terminate child, spousal,
23 partner, or family support. For the purpose of this rule, “request” refers to *Request*
24 *for Order* (form FL-300), *Notice of Motion (Governmental)* (form FL-680), or
25 other moving papers requesting a modification of support.
26

27 **(b) Effective date of modification**
28

29 Except as provided in Family Code section 3653(b), an order modifying or
30 terminating a support order may be made effective as of the date the request and
31 supporting papers are mailed or otherwise served on the other party, or other
32 party’s attorney when permitted. Nothing in this rule restricts the court’s discretion
33 to order a later effective date.
34

35 **(c) Service of filed request**
36

37 If the request and supporting papers that were served have not yet been filed with
38 the court, the moving party must also serve a copy of the request and supporting
39 papers after they have been filed with the court on the other party, or other party’s
40 attorney when permitted. If the moving party is the local child support agency and
41 the unfiled request already has a valid court date and time listed, then subsequent
42 service of the request is not required.
43

1 **(d) Court discretion**

2
3 Nothing in this rule is meant to limit court discretion or to alter rule 5.92 or 5.260
4 regarding which moving papers are required to request a modification of support.
5

6 **(e) Sunset of rule**

7
8 This rule will sunset on June 30, 2022, unless otherwise amended or repealed by
9 the Judicial Council.
10

11 *(Subd (e) amended effective March 11, 2022.)*
12

13 *Emergency Rule 13 amended effective March 11, 2022; adopted effective April 20, 2020.*
14

15 *Appendix I amended effective March 11, 2022; adopted effective April 6, 2020; previously*
16 *amended effective April 17, 2020, April 20, 2020, June 20, 2020, August 13, 2020, November 13,*
17 *2020, January 1, 2022, January 21, 2022.*